

Answers to Questions Received in Response to Solicitation N0018926QB050

1. **Question:** PWS Internal Inconsistency — DELP/CELP Course Duration. PWS §3.1.1.1 and §3.2 reference "5 (five) day in-residence programs" while the CLIN structure (CLINs 0003, 0004, and option equivalents) and PWS §9.0 Summary of Program Events both reference "Four Day Event" deliverables. Please clarify whether DELP and CELP are intended to be 4-day or 5-day in-residence programs.
 - a. **Answer:** The actual program should be four (4) days, but the day prior to the program's start should consist of hotel check-ins followed by a welcome dinner that evening. So, there will be a total of five (5) days, consisting of one (1) day for check-in/dinner and four (4) days for the program event.

2. **Question:** In-Residence Venue Arrangement. PWS §3.3.7 requires "a fully integrated, executive-level learning and lodging environment with classrooms, lodging, and fitness accommodations located no more than a half-mile from one another." Will the Government accept a contractor-arranged third-party residential conference venue (e.g., a university executive education center or commercial conference facility) as satisfying this requirement, provided all proximity, FEMA Hotel and Motel National Master List, on-site security, and 24-hour maintenance requirements are met?
 - a. **Answer:** Yes

3. **Question:** Hybrid Delivery Modalities. PWS §3.4.1 expressly permits virtual delivery of the six annual one-day Leadership Workshops. For DELP and CELP, may any portion (pre-work, post-program follow-up, specific modules, or executive coaching components) be delivered in a hybrid or fully virtual format, or must the entirety of each cohort be delivered in-residence?
 - a. **Answer:** Both DELP and CELP cohorts shall be delivered in-residence; pre-work, post-work and executive coaching occurring after the residency portion may be completed virtually.

4. **Question:** Senior-Level Consultant Engagement Type. PWS §2.2.1.2 establishes qualifications for the Senior-Level Consultant. Please confirm whether the Senior-Level Consultant and ICF-certified coaches may be engaged as 1099 independent contractors or subcontracted individuals, or whether they must be W-2 employees of the prime contractor.
 - a. **Answer:** Regardless of their employment status (W-2, 1099, or subcontractor), the prime contractor remains fully responsible for ensuring all stated qualifications (e.g., ICF certification,) are met and delivering the required

performance. Additionally, the prime contractor must ensure stability of personnel and direct management control.

5. **Question:** Treatment of Pre-Existing Intellectual Property. PWS §8.0 states that "all programs and materials first produced at Government expense during the course of this contract are the property of the Government." Please clarify the Government's treatment of (a) pre-existing curriculum, frameworks, and assessment instruments that the contractor licenses or otherwise incorporates into deliverables but did not first produce under this contract, and (b) whether the Government will accept license terms (e.g., a non-exclusive Government-purpose license) for such pre-existing intellectual property.
 - a. **Answer:** The solicitation is clear on its face.

6. **Question:** First Cohort Delivery Schedule. Attachment 1 requires the high-level design to be delivered "within 30 days of award," and PWS §3.2.1 indicates "preferred delivery [is] in June with courses running concurrently." With base period beginning 1 June 2026, please clarify the latest acceptable date for first DELP and CELP cohort delivery in the base period, given the design, walk-through, material development, and venue lead-time required.
 - a. **Answer:** Based on contract award, EMPO realizes June may not be doable. A pre-approved delivery of both DELP and CELP prior to 30 September 2026 is acceptable to allow for appropriate lead time with the design, delivery and venue agreements.

7. **Question:** Concurrent Delivery Definition - Section 3.2.1 indicates preferred delivery in June with courses running concurrently. Does "concurrently" mean the same week at the same facility, or within the same general timeframe (e.g., same month)? Are DELP and CELP expected to be delivered at a single location simultaneously?
 - a. **Answer:** Based on contract award, EMPO realizes June delivery may not be doable. A pre-approved delivery of both DELP and CELP prior to 30 September 2026 is acceptable to allow for appropriate lead time with the design, delivery and venue agreements. Courses shall run the same week and at a facility in close proximity to allow for networking during meals and breaks. Ideally, the location of both courses would be within the same building, but not the same classrooms.

8. **Question:** Participant Count / Capacity Planning - Sections 3.2 and 3.3.7.3 reference approximately 20 attendees per event and a maximum capacity of up to 45 participants (including observers). Could the Government clarify whether 20 attendees represents a target, minimum, or typical cohort size, and how contractors should interpret and plan for potential variance up to 45? Is this difference intended to provide sufficient space and a comfortable environment for participants, observers and staff, or does it imply active participants/observers could scale up to 45 people, not counting staff? Contractor needs this information to price accurately.
- a. **Answer:** The solicitation is clear on its face.
9. **Question:** Training Site Cost Allocation (CLIN Structure) - Section 3.3.9.4 states that training site costs shall be identified as direct material costs. Should venue/facility costs be captured under the Materials CLIN (0008/x008), Travel CLIN (0007/x007), or another specific structure within the pricing submission?
- a. **Answer:** The solicitation is clear on its face.
10. **Question:** Prior Contractor Participation - The solicitation notes that a prior contract for similar services was performed by UNC Kenan-Flagler Business School. Could the Government confirm whether prior contractors are eligible to compete on this requirement? If yes, would government please provide access to all relevant data, materials (non-proprietary), and insights into organizational context, as are available to incumbent resulting from prior contract execution experience, to enable fair and open competition?
- a. **Answer:** The solicitation is clear on its face. The Government is not able to provide access to prior contractor proprietary data or internal contract performance materials. Quoters are encouraged to rely on the solicitation documents as issued. No additional non-public historical contract data will be provided.
11. **Question:** CPARS Availability - May a quoter submit a past performance reference for work completed within the past five years if the CPARS evaluation has not yet been finalized?
- a. **Answer:** The solicitation is clear on its face.
12. **Question:** Travel and Material CLINs (NTE Handling) - The solicitation requires quoters to enter Government-provided Not-to-Exceed (NTE) travel and material amounts. Should

quoters apply G&A/overhead to these values prior to entry, or enter the base NTE amounts and identify indirects separately?

- a. **Answer:** For evaluation purposes, quoters shall provide a single total price per CLIN. If indirect rates are included, they must be reflected in the proposed total price and should be sufficiently described to support evaluation.

13. **Question:** Disallowance of Program Delivery - Section 3.3.9.5.2 states that EMPO may disallow further delivery of the program if results are unsatisfactory. Could the Government provide additional detail regarding the circumstances and process under which this provision would be exercised?

- a. **Answer:** The solicitation is clear on its face.

14. **Question:** Performance Approach – Delivery Date Ranges – For Factor I, should proposed delivery date ranges be presented as a single integrated window for both DELP and CELP, or separately for each program?

- a. **Answer:** Based on contract award, EMPO realizes June delivery may not be doable. A pre-approved delivery of both DELP and CELP prior to 30 September 2026 is acceptable to allow for appropriate lead time with the design, delivery and venue agreements. Courses shall run the same week and at a facility in close proximity to allow for networking during meals and breaks. Ideally, the location of both courses would be within the same building.